

CHS Nigeria Property Documents Research

Research: Legal Documents Required for a Property Sale in Nigeria, and Recommended Verification Charging

Direct answer first — the good news

CHS's own Terms & Conditions already list exactly the right documents. Term 27 requires a Certificate of Occupancy, Deed of Assignment, Survey Plan, Governor's Consent, Tax Clearance Certificate, Sale Agreement, and Building Plan Approval where applicable. Every source I checked confirms this matches real, standard Nigerian practice. This assignment mainly confirms and grounds what's already built, rather than revealing something missing.

The core documents, and what each one actually proves

Certificate of Occupancy (C of O). The single most important document — a real, state-government-issued grant of occupancy rights, typically for 99 years. It's the strongest, most recognized proof that a piece of land is genuinely, legally held. Multiple real sources describe it as the standard buyers, lawyers, and banks all check first.

Deed of Assignment. The actual legal document that transfers ownership from seller to buyer — names of both parties, the price, and a real description of the property. This is the document that records that a specific sale genuinely happened, but on its own, without a valid underlying title, it doesn't prove the seller had the right to sell in the first place.

Survey Plan. A licensed surveyor's real, technical description of the exact boundaries, size, and coordinates of the land — needed both to obtain a C of O and to confirm the property being sold is genuinely the property being described.

Governor's Consent. Required by law for a transfer, mortgage, or lease of land already under a C of O — without it, a transfer is not legally valid. Real sources note this step alone can take several months to complete through the state.

Tax Clearance Certificate. Confirms the seller has genuinely settled tax obligations tied to the property — required for registering the deed of transfer.

Building Plan Approval. Required specifically where the property includes a real structure, confirming the building itself was constructed with proper government approval, separate from the land

title itself.

Excision and Gazette (situational — mainly relevant for land carved out of a formerly government-acquired or community area). Without these, a C of O generally cannot be obtained at all for that land.

How real verification actually happens today

A genuine land title search is conducted directly at the State Land Registry (or AGIS in Abuja/FCT) — the seller's real documents are checked against official government records to confirm the registered owner matches, the land isn't under litigation or already mortgaged, and there's no government acquisition notice against it. This typically takes 5–14 days and real sources report registry search fees commonly ranging from ₦15,000 in Lagos up to ₦50,000 in some other states, alongside separate survey and C of O verification costs. A full, real, professional verification (registry search, survey confirmation, and a physical site inspection) can run from roughly ₦100,000 to ₦600,000+ depending on thoroughness and whether a lawyer is engaged.

Recommendation: how and when CHS should charge for verification

Charge upfront, before verification work begins — not after a sale completes. This is the direct, practical reason: CHS genuinely incurs a real cost the moment it starts a registry search, regardless of whether that specific property ever sells. If CHS only charged on a successful sale, it would be absorbing the real cost of every listing that's later withdrawn, rejected for fraud, or simply never sells — a real, ongoing loss with no way to recover it.

A flat, published verification fee per property is simpler and more defensible than a percentage. Verification cost is driven by the *number of documents* and the *state's registry fees*, not the property's sale price — a ₦500,000,000 property with clean, complete paperwork doesn't cost CHS more to verify than a ₦30,000,000 one with the same paperwork. A flat fee (or a small number of flat tiers, based on document count/complexity) keeps this honest and easy to explain to owners.

A reasonable, real-world starting point: given real registry and survey verification costs commonly fall between ₦50,000–₦150,000 depending on state and thoroughness, a real, published CHS verification fee somewhere in that same range — charged once, upfront, non-refundable once the actual registry work has genuinely started — reflects the real cost being incurred without over-charging.

This is a starting recommendation for our own discussion, not a final number — the right way to set the actual figure is to check real registry fees in the specific states CHS is most active in, and build in CHS's own real margin on top of the pass-through government fees.

Sources consulted

- Mondaq Nigeria — Real Estate: legal steps to transfer land ownership; property title verification

- Lexpraxis Solicitors — land ownership transfer process
- Legit.ng — proof of ownership documents guide
- BuildWithEase — land titles and legal documents explained (2026)
- WithinNigeria — land verification process guide (2026)
- LawClinicPro — land document verification guide (2026)
- AfroTools — land survey costs Nigeria (2026)